IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979, read with Section 11 of the High Court (Special Provisions) Act No. 19 of 1990 and Section 14 of the Judicature Act No. 02 of 1978.

Court of Appeal Case No: **CA/HCC/0101/2026**

High Court of Anuradhapura Case No: **HC/025/2023**

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Rajuge Asela Kumara

Accused

AND NOW BETWEEN

Rajuge Asela Kumara

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Nisali Pieris for the Accused – Appellant.

: Akila Dalpatadu, SC for the Respondent.

Argued on : 16.09.2026

Decided on : 22.10.2026

Pradeep Hettiarachchi, J

Judgment

1. This appeal arises from the judgment and sentence dated 21.11.2025 delivered by the learned High Court Judge of Anuradhapura. The Accused-Appellant (hereinafter referred to as "the Appellant") was indicted before the High Court of Anuradhapura on a charge of committing grave sexual abuse against one Kappetiyawe Gamage Saman Kumara Gamage, an offence punishable under Section 365B(2)(b) of the Penal Code, as amended by Acts No. 22 of 1995, No. 29 of 1988, and No. 16 of 2006.

2. At the trial before the High Court, the prosecution called four witnesses, while the Appellant opted to make a dock statement. Upon the conclusion of the trial, the learned Trial Judge found the Appellant guilty of the charge and convicted him accordingly.

3. Consequently, the Appellant was sentenced to seven years' rigorous imprisonment and ordered to pay a fine of Rs. 10,000/-, with a default sentence of three months' simple imprisonment. In addition, the learned High Court Judge directed the Appellant to pay Rs. 250,000/- as compensation to the victim, with a default sentence of eight months' simple imprisonment.

4. Being aggrieved by the said conviction and sentence, the Appellant has preferred the instant appeal. The Appellant relied on the following grounds of appeal;

a. The learned High Court Judge has failed to give due consideration to the discrepancies in the prosecution evidence;
b. The learned High Court Judge has misdirected himself in evaluating the evidence of PW1;

5. According to the testimony of the victim, he was fifteen years of age at the time of the alleged incident, and the Appellant was his cousin, being the son of his uncle. On the day in question, he attended school and returned home, where his mother was present at that time. Then, at about 3.30 p.m., having obtained his mother's permission, the victim proceeded to a nearby paddy field to pluck green leaves.

6. According to the testimony of the victim, while he was plucking green leaves, the Appellant approached him and asked whether he would accompany him to catch wild animals. Thereafter, the victim accompanied the Appellant to a nearby jungle situated in the vicinity of the said paddy field. The victim further testified that, upon reaching the said location, the Appellant approached him from behind, suddenly pushed him against a tree, removed the victim's trousers, and inserted his penis into the victim's anus.

7. The victim further testified that he attempted to escape from the Appellant but was unsuccessful. He testified that, when he screamed during the incident, the Appellant threatened him by stating that he would subject the victim's mother to the same.

8. The victim further testified that, after the incident, while he was on his way home, his mother (PW2) came looking for him. Upon encountering the victim, PW2 questioned him as to why he had been delayed in returning home. At that time, PW2 also observed the Appellant in the vicinity and inquired as to why he was there. The victim thereafter disclosed the incident to his mother, following which they proceeded home.

9. Thereafter, PW2 proceeded to the house of her brother, who was the father of the Appellant, and informed him of the incident. On 29.01.2019, at about 6.30 p.m., the Appellant and his father came to the victim's house and engaged in a quarrel with PW2. Subsequently, the victim, accompanied by his mother, proceeded to the police station to lodge a complaint.

10. During cross-examination, it was elicited that, in his statement to the police, the victim had stated that the alleged act was committed after the Appellant pushed him to the ground, stepped on his back, and then perpetrated the act. However, in his testimony before the High Court, the victim testified that the Appellant had pushed him against a tree and committed the alleged act in that position, which was marked as V1.

> *"ප්‍ර: තමුන් පොලිසියට මෙහෙම කිව්වද, මාව එතන බිම මුහුණ පොළව පැත්තට වන සේ පෙරලුවා. මාව එහෙම බිම දිගා කරවලා මගේ පිට උඩ නැගලා එයාගේ මීයා මගේ කක්කා කරන පැත්තට තියලා තද කරලා උඩට පහලට දගුලුවා. තමුන් එහෙම පොලිසියට කිව්වද?*
> *උ: ගහට හේත්තු කරලා කියලා තම මම කිව්වේ.*
> *ප්‍ර: තමුන් පොලිසියට බිම දිගා කරගෙන කලා කියලා කිව්වේ නැහැ නේද?*
> *උ: නැහැ."* *(at vide page 90 of the Appeal Brief)*

> *"මෙම සාක්ෂිකරු 2019.01.29 වන දින පැය 23.00 ට සිදු කර ඇති ප්‍රකාශයේ "මාව එතන බිම මුහුණ පොලොව පැත්තට වන සේ පෙරලුවා. මාව ඒ විදියට බිම දිගා කරලා මගේ පිට උඩ නැගලා එයාගේ මීයා මගේ කක්කා කරන පැත්තට තියලා තද කරලා උඩට පහලට වෙමින් දැගලුවා." යන කොටස පරස්පර විරෝධතාවයක් ලෙස වී. 1 ලෙස ලකුණු කිරීමට අවසර පතයි."*

11. The prosecution thereafter called PW2, the mother of the victim, to testify. According to her evidence, on the day of the alleged incident, the victim returned from school and, having obtained her permission, went to a nearby paddy field to pluck green leaves.

12. PW2 further testified that, as the victim had not returned home within the expected time, she went to the said paddy field in search of him. Upon reaching the vicinity of the paddy field, she saw the victim and the Appellant emerging from the jungle. She questioned the victim as to why the Appellant was accompanying him. The victim explained that the Appellant had asked him to accompany him to observe the catching of wild animals. The victim thereafter disclosed the alleged incident to PW2.

13. PW2 further testified that, upon returning home, she informed the Appellant and his father, who was her brother and resided on the adjoining land, of the alleged incident. She stated that, thereafter, the Appellant and his father came and threatened her.

Consequently, PW2 lodged a complaint with the police on 29.01.2019 at about 10.00 p.m.

14. During cross-examination, it was elicited that PW2 testified that, while searching for her son, she saw the Appellant and the victim together at the same location. However, in her statement to the police, PW2 had stated that she encountered the Appellant while searching for her son and subsequently found the victim in the paddy field, which was marked as 2V1.

> *"ප්‍ර: මහත්මිය කියන්නේ ගරු අධිකරණයට සාක්ෂි දීල මේ විත්තිකරු සහ තමුන්ගේ දරුවා වෙලේ එක තැනකට වෙලා හිටිය කියල?*
> *උ: ඔව් ස්වාමිනි." (at vide page 112 of the Appeal Brief)*
> .....
> *"ප්‍ර: තමුන් පොලිසියට මෙහෙම කිව්වද "මට උෆ එහෙම කියලා යන්න ගියා. මම පුතාව හොයා ගෙන වේලට ගියා" කියලා ?*
> *උ: කිව්වද කියලා මතකත් නැහැ ස්වාමිනි." (at vide page 116 of the Appeal Brief)*

15. However, in my view, the aforementioned contradiction does not go to the root of the prosecution's case, as they do not materially undermine the sequence of events narrated by the victim.

16. It is further evident from the testimony of PW2 that, although the victim disclosed the incident to her, she did not immediately lodge a complaint with the police. Instead, she proceeded to the Appellant's house and informed his father of the incident. According to PW2, her reluctance to make an immediate complaint arose from her distress at what had allegedly happened to her son and the difficulty she experienced in coming to terms with the incident.

17. The delay in lodging the complaint is reasonably explained by the evidence of PW2, who testified that, although she became aware of the alleged incident through the disclosure made by her son on 28.01.2019, she did not proceed to the police station either on that day or on the following morning, as she was reluctant to subject her son to further embarrassment and distress. Accordingly, the delay in making the complaint, when considered in the light of the explanation given by PW2 and the circumstances of

the case, cannot, by itself, be regarded as undermining the credibility of the prosecution's case.

> *"ප්‍ර: තමුන් ඔය තමුන්ගේ පුතා 2019.01.28 කරපු ප්‍රකාශයෙන් පස්සේ එදින තමුන් පොලිසියට ගියේ නැහැ?*
> *උ: ඔව් ස්වාමිනි.*
> *ප්‍ර: තමුන් පහුවදා උදේ පොලිසියට ගියෙත් නැහැ?*
> *උ: ඔව් ස්වාමිනි මම ගියේ නැහැ මගේ දරුවට ලජ්ජා කරන්න බැරි නිසා." (at vide pages 121-122 of the Appeal Brief)*

18. PW2 further testified that, on the following day, at about 7.30 p.m., the Appellant and his father came to her house, engaged in a quarrel, and threatened them against making a complaint to the police. It was only thereafter that PW2 proceeded to the police station and lodged a complaint against the Appellant.

19. However, in evaluating the evidence of the victim, due consideration must be given to the fact that he was a child at the time of the alleged incident. Accordingly, any discrepancies or inconsistencies in his testimony must be assessed in the context of his age and the circumstances in which the alleged incident occurred, having regard to the nature of the evidence expected from a child witness.

20. In the present matter, it is noteworthy that the victim was fifteen years old at the time of the alleged incident, and testified before the Trial Court approximately five years after the incident. Accordingly, in view of his tender age at the time of the incident and the passage of time before he gave evidence, it is only natural that certain minor inconsistencies would appear in his testimony. Such inconsistencies do not, in my view, undermine his overall credibility.

21. The evidence of a child witness must be assessed as a whole, taking into account the entirety of the evidence adduced at the trial. At the conclusion of the case, the court must determine whether the child's evidence, having been tested through cross-examination, is trustworthy. This assessment depends upon whether the child was able to narrate the events coherently, communicate effectively, understand the questions posed, and provide rational and intelligible answers.

22. If the child's evidence has not undergone any material or substantial change and the essence of the allegations remains intact, the court may safely accept such evidence as satisfactory in all material respects after evaluating it alongside the evidence of the accused. The expression "satisfactory in all material respects" does not require that every aspect of the testimony be free from discrepancies or inconsistencies. Rather, the court must consider the evidence in its entirety, bearing in mind that minor discrepancies are not uncommon, particularly in the testimony of a child witness, and determine whether the evidence, viewed as a whole, is sufficiently reliable to establish the guilt of the accused.

23. In ***Ranjeet Kumar Ram v. State of Bihar [2015] SCC Online SC 500***, the court held that:

> *"Evidence of the child witness and its credibility would depend upon the circumstances of each case. Only precaution which the court has to bear in mind while assessing the evidence of a child witness is that the witness must be a reliable one."*

24. At this stage, it is essential to understand how the testimony of a child witness should be looked into and appreciated.

25. In ***Dattu Sakhare Vs. State of Maharashtra (1997) 5 SCC 341***, held that;

> *"There is no requirement or condition that the evidence of a child witness must be corroborated before it can be considered, and rather the insistence of any corroboration is only a rule of prudence that would depend upon the peculiar facts and circumstances of each case."*

26. In ***Suryanarayana Vs. State of Karnataka (2001) 9 SCC 129***, held that;

> *"The evidence of the child witness cannot be rejected per se, but the court, as a rule of prudence, is required to consider such evidence with close scrutiny and only on being convinced about the quality of the statements and its reliability, base conviction by accepting the statement of the child witness."*

27. In ***Rameshwar Vs. State of Rajasthan (1952) AIR 54***; the landmark judgment held that child testimony, much scrutinized, does not require compulsory corroboration in the absence of grounds for suspecting tutoring or fabrication.

28. In ***The State of Madhya Pradesh Vs. Balveer Singh (2005) INSC 261***, the Supreme Court of India revisited fundamental principles regarding the testimony of child witnesses and the application of Section 106 of the Indian Evidence Act, 1872 ("Evidence Act") in cases involving suspicious deaths within the confines of a home. This decision carries paramount significance as it clarifies the standard for assessing the credibility of child witnesses, addresses the implications of delayed recording of such testimony, and underscores the shifting burden of proof under certain factual scenarios.

> *"The Trial Court must also record the demeanour of the child witness during the course of its deposition and cross-examination and whether the evidence of such child witness is his voluntary expression and not borne out of the influence of others."*

> *"There is no requirement or condition that the evidence of a child witness must be corroborated before it can be considered. A child witness who exhibits the demeanour of any other competent witness and whose evidence inspires confidence can be relied upon without any need for corroboration and can form the sole basis for conviction."*

29. Therefore, in my view, the aforementioned inconsistencies in the testimony of the victim are not of such a material nature as to affect the core of the prosecution's case or render his evidence inherently unreliable. Such discrepancies, when considered in the context of the evidence as a whole, do not warrant the rejection of his testimony. It is further significant that the evidence of the victim remained consistent in its material particulars throughout the trial before the High Court. Accordingly, I am of the view that the said inconsistencies do not materially undermine the credibility of the victim or the evidentiary value of the prosecution's case.

30. Moreover, it should be noted that the learned Trial Judge observed the demeanour and deportment of the victim, and that the victim was crying while giving the evidence. It is desirable to emphasize that the learned Trial Judge has the advantage of observing the demeanour of the witness. Accordingly, the appellate courts are slow to interfere with the findings of a Trial Judge unless it is demonstrated that the Trial Judge has manifestly misdirected herself on a material issue, thereby causing prejudice to the Appellant.

31. In ***Alwis vs. Piyasena Fernando (1993) 1 Sri. L R 119***, it was held that:

> *"It is well established that findings of primary facts by a trial Judge who hears and sees witnesses are not to be lightly disturbed on appeal."*

32. Similar sentiments were articulated in ***Dharmasiri vs. Republic of Sri Lanka [2010] 2 Sri. L.R.241***, where it was held that:

> *"Credibility of a witness is mainly a matter for the trial Judge; the Court of Appeal will not lightly disturb the findings of a trial Judge with regard to the credibility of a witness unless such findings of the trial Judge are manifestly wrong."*

33. In ***Ariyadasa vs. Attorney General [2012] 1 Sri LR 84***, the Court of Appeal held that;

> *"The Court of Appeal will not lightly disturb a finding of a Judge with regard to the acceptance or rejection of a testimony of a witness, unless it is manifestly wrong, when the Trial Judge has taken such a decision after observing the demeanour and deportment of a witness……"*

34. Accordingly, this Court recognizes that the learned Trial Judge had the advantage of observing the demeanour and deportment of the victim and that such an advantage is ordinarily entitled to due consideration by the appellate court; any assessment of his credibility and probability must nevertheless be made upon a proper and cumulative consideration of the entirety of the evidence, including the evidence elicited in cross-examination.

35. The next material witness called by the prosecution was PW6, the JMO, who examined the victim and prepared the Medico-Legal Report. According to the evidence of PW6, the victim was examined on 30.01.2019 at about 11.45 a.m. The brief history provided by the victim to the JMO was that, on 28.09.2019 at about 4.30 – 5.00 p.m., he had gone to a paddy field to pluck green leaves. The Appellant had thereafter taken him to a nearby jungle, pressed him to the ground, and subjected him to anal penetration. The victim further stated that he experienced pain and cried following the alleged incident and returned home approximately ten minutes later. He also stated that the Appellant threatened to rape her mother if he disclosed the incident to his mother.

36. Upon examining the victim, PW6 made the following observations: a fresh laceration measuring 1 cm was observed at the 12 o'clock position of the anus; the anal sphincter opened easily upon traction; stool was observed around the anus. The JMO further indicated that this was the first occasion on which the alleged anal penetration had occurred.

37. The JMO opined that, having regard to the observations made during the medical examination, the laceration identified in the victim's anal region could have resulted either from constipation or from the insertion of a foreign object into the anus from outside. However, the JMO further testified that there was neither a history of constipation nor any clinical features suggestive of constipation in the victim. In these circumstances, the medical findings are consistent with the history provided by the victim to the JMO, namely, that the Appellant had subjected him to anal penetration. Nevertheless, the medical evidence must be considered together with the other evidence on record, as the findings are not, in themselves, conclusive as to the precise identity of the person responsible.

38. According to the evidence of the JMO, the laceration observed in the victim's anus could have been sustained within three days preceding the medical examination. As the victim was examined on 30.01.2019, this medical finding is consistent with the alleged incident said to have occurred on 28.01.2019.

39. The JMO further opined that it would be practically impossible for the alleged act of penetration to have occurred while the victim was standing.

40. The testimony of the victim, which the Learned Trial Judge had the advantage of observing firsthand, was accepted as credible. Her testimony is materially corroborated by the medical evidence, which confirmed recent penetration, which is compatible with the history narrated by him. Accordingly, the medical evidence, when considered together with the victim's testimony and the other evidence on record, provided a further basis for evaluating the credibility of the prosecution's case.

41. In these circumstances, I find no basis to accept the Appellant's contentions. On the contrary, the judgment demonstrates a careful consideration of both the prosecution and defence evidence. Accordingly, I find that the grounds of appeal advanced by the Appellant are devoid of merit and must fail.

42. For the foregoing reasons, I find no basis to interfere with the findings of the learned Trial Judge. Accordingly, I affirm the conviction and sentence imposed by the learned High Court Judge of Anuradhapura on 21.11.2025. In these circumstances, the appeal is dismissed.

43. Considering all the circumstances, I order that the sentence be operative from the date of conviction, namely, 21.11.2025.

Judge of the Court of Appeal

P. Kumararatnam, J.,

I agree

Judge of the Court of Appeal